

Enterprise SaaS Subscription Agreement

Full Text Demonstration Agreement

Party A	Siemens Digital Industries Software GmbH
Party B	Northwind Analytics Ltd.
Effective Date	1 June 2026
Governing Law	laws of Germany
Venue	courts of Munich, Germany
Primary Subject	cloud-based analytics, dashboarding, and workflow automation services
Risk Focus	service levels, data ownership, renewal controls, and suspension rights

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Article 1. Definitions and Interpretation

Commercial purpose. The parties enter this Article to allocate responsibility for cloud-based analytics, dashboarding, and workflow automation services. The obligations below are intended to be operationally testable and not merely aspirational. Each party shall maintain records sufficient to show compliance, and neither party may treat silence in an order form, statement of work, or schedule as permission to reduce the protections stated in this Agreement.

Core obligations. Northwind Analytics Ltd. shall provide, manage, and document production tenant, administrator console, audit log exports, uptime reporting, onboarding workshops, and migration support. Siemens Digital Industries Software GmbH shall provide timely decisions, access to reasonably necessary stakeholders, and accurate instructions. Where a dependency is not satisfied, the affected party shall give written notice identifying the dependency, the consequence for timing or cost, and the mitigation steps available without expanding the original scope.

Control language. Any ambiguity in this Article shall be resolved in favor of preserving service levels, data ownership, renewal controls, and suspension rights. A waiver must be express, written, and signed by an authorized representative. A course of dealing, delayed objection, acceptance of partial performance, or payment of an invoice does not waive future enforcement or modify the standard of care.

- a. The parties shall maintain a decision log for matters that affect service levels, data ownership, renewal controls, and suspension rights. The log must identify the requester, approver, date, evidence reviewed, residual risk, and any follow-up obligation.
- b. Records involving customer usage data, uploaded operational records, administrator credentials, telemetry, and support tickets must be segregated from general project material, retained only for the approved retention period, and made available for audit where the Agreement grants audit rights.
- c. Personnel performing material obligations must be qualified for the role assigned. Replacement personnel must receive transition briefings and may not reduce continuity for critical services, milestones, or regulated deliverables.
- d. Each party shall notify the other promptly after discovering facts that could reasonably affect performance, security, compliance, financial exposure, or the enforceability of this Agreement.

Escalation and remedy. If a dispute arises under this Article, the parties shall first escalate to project leads, then to legal and commercial executives. The parties shall continue undisputed performance while the dispute is pending. Equitable relief remains available for confidentiality, data protection, intellectual property, security, and non-use obligations.

Article 2. Scope of Work and Ordering Mechanics

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Article 10. Term, Termination, Transition, and Dispute Resolution

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Signature Blocks

**Siemens Digital Industries Software
GmbH**

Northwind Analytics Ltd.

By: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____